

HEADNOTE

“In accordance with R.239.1 RoP, Rules 101-110 RoP (on the interim procedure) apply mutatis mutandis to the appeal proceedings. In view thereof, Rules 35 and 36 RoP must be held to be applicable mutatis mutandis in the appeal proceedings as well.”

COURT

Court of Appeal Luxembourg

PROCEEDINGS

Infringement action

PATENT

EP 1 875 683

INTEGRATED CIRCUIT WITH DATA
COMMUNICATION NETWORK AND
IC DESIGN METHOD

KEYWORDS

Lodging additional written pleadings

R.36 RoP

Rule 239 Role of the judge-rapporteur

SUMMARY

The Court of Appeal in Luxembourg ruled on an infringement action. The patent at issue relates to an integrated circuit with data communication network and IC design method. According to the headnotes of the decision, the interim procedure rules apply to appeal proceedings in the same way they apply to first instance proceedings. Furthermore, the rules governing evidence and witness testimony in first instance cases must be applied equally during appeals before the Court of Appeal.